

25STCV07096 25STCV07096

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV07096 Hearing Date: August 21, 2026 Dept: 617

Dept. 617

Date: 8-21-26

Case #: 25STCV07096 / Related Case #: 22STCV06315

Trial Date: None Set

DEMURRER

MOVING PARTY: Defendants, Alvin Kusumoto, Cris B. Liban, Evan Rosenberg, Stephanie Wiggins, and Sayuj Panicker

RESPONDING PARTY: Plaintiff, West Coast Add It Up Ad Agency dba, Lex Miller

RELIEF REQUESTED

Demurrer to Complaint

SUMMARY OF ACTION

Plaintiff West Coast Add It Up Ad Agency dba, Lex Miller filed the instant breach of contract action against Defendants Alvin Kusumoto, Cris B. Liban, Evan Rosenberg, Stephanie Wiggins, and Sayuj Panicker for alleged unauthorized use of the "Tap App" for the benefit of Los Angeles County. Plaintiff alleges Defendants are employees of the Los Angeles County Metropolitan Transportation Authority (Metro). Plaintiff asserts claims for: (1) Breach of Contract; (2) Misappropriation of Ideas – Implied-in-Fact Contract; (3) Claim and Delivery; (4) Conversion; (5) Unfair Business Practices; (6) Violation of Civil Code section 1708; (7) Fraud; (8) Intentional Misrepresentation; (9) Promissory Estoppel; (10) Breach of the Covenant of Good Faith and Fair Dealing; (11) Negligent Misrepresentation; and (12) Common Count.

RULING: Sustained.

Request for Judicial Notice: Granted in part.

The Court takes judicial notice of the existence of the complaints filed in the related case. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882.) Judicial notice is also taken of the existence of the Court's Judgment and Order of Dismissal in the related case and the truth of the results reached therein. (*Id.* at pp. 885-86.)

Plaintiff's request for judicial notice is denied because he seeks to impose a duty on Defendants rather than seeking judicial notice of law or indisputable fact. (See *Evid. Code*, § 452.)

Defendants demur to Plaintiff's complaint, arguing that Plaintiff's claims are barred by *res judicata*, the statute of limitations, and the Government Claims Act. They further contend that the complaint is uncertain and that Plaintiff does not state a cognizable claim under Civil Code section 1708. Plaintiff opposes the demurrer, denying his claims are barred and maintaining the sufficiency of the allegations in support of his claims. Defendants' demurrer is sustained with leave to amend, except as to the demurrer to the Civil Code section 1708 claim which is sustained without leave to amend.

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (*Code Civ. Proc.*, § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a

demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (*Code Civ. Proc.*, § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . ." (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.) "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

Plaintiff's first through fifth and seventh through twelfth causes of action are time-barred. The longest statute of limitations applicable to Plaintiff's claims are those for breach of written contract and unfair business practices. (*Civ. Code*, § 337, subd. (a); *Bus. & Prof. Code*, § 17208.) Plaintiff's claims do not fall within the limitations period because he alleges breach of contract and lack of payment in 2014 but did not file the instant action until March 12, 2025. [*Compl.* ¶ 14.] Plaintiff's reliance on the discovery rule is unavailing. Plaintiff claims that "[i]t was not until May 25, 2022, that Plaintiff became aware that Defendants had intentionally misrepresented the intentions to compensate the Plaintiff as independent contract on the vendor portal on the METRO website." [*Id.* ¶ 48.] But at the same time, Plaintiff alleges that Defendants represented to him that the "Metro Vendor Portal was suitable to secure payment prior to the June 1, 2014, on the launch of the app." [*Id.* ¶ 55.] Absent facts showing why Plaintiff could not have discovered the breach earlier with reasonable diligence (e.g., by checking the vendor portal), his allegations are insufficient to invoke application of the discovery rule. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.) Given this is Plaintiff's original complaint and the liberal policy permitting amendment, Plaintiff is granted leave to amend to cure this defect.

Plaintiff also fails to state his Civil Code section 1708 claim. Plaintiff seeks money damages for this claim, but this provision does not authorize a cause of action for damages. (*Ley v. State of Cal.* (2004) 114 Cal.App.4th 1297, 1306.) Defendants' demurrer to this claim is therefore sustained without leave to amend.

Because the Court sustains the demurrer on these grounds, it does not address Defendants' *res judicata* and government claim arguments. Indeed, Defendants do not analyze how the claims in each case are the same or how the defendants who were not parties in the related case are nonetheless in privity with those that were. Both sides also do not sufficiently address whether Plaintiff alleges a taking of intangible property, thus making the government claim requirement inapplicable. (*Gov. Code*, § 905.1; see *Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1167 ["The takings clauses of the United States and California Constitutions protect not only tangible property, but also intangible trade secret property

rights protected by state law"].) The Court declines to make the arguments for the parties. (Badie v. Bank of America (1998) 67 Cal.App.4th 779, 784-85 ["When [a party] fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived"].)

Plaintiff is granted 30 days' leave to amend. Plaintiff may only add facts in support of the successfully challenged claims. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.) If Plaintiff declines or fails to file an amended complaint, Defendants may move for dismissal. (Code Civ. Proc., § 581, subd. (f)(2).) Any new causes of action outside the scope of the order may be addressed via a motion to strike.

Defendants to give notic